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Understanding Brand Landscape

Assignment 4: Ad Standards Report

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CLAUSE 1:

ACCURACY AND CLARITY



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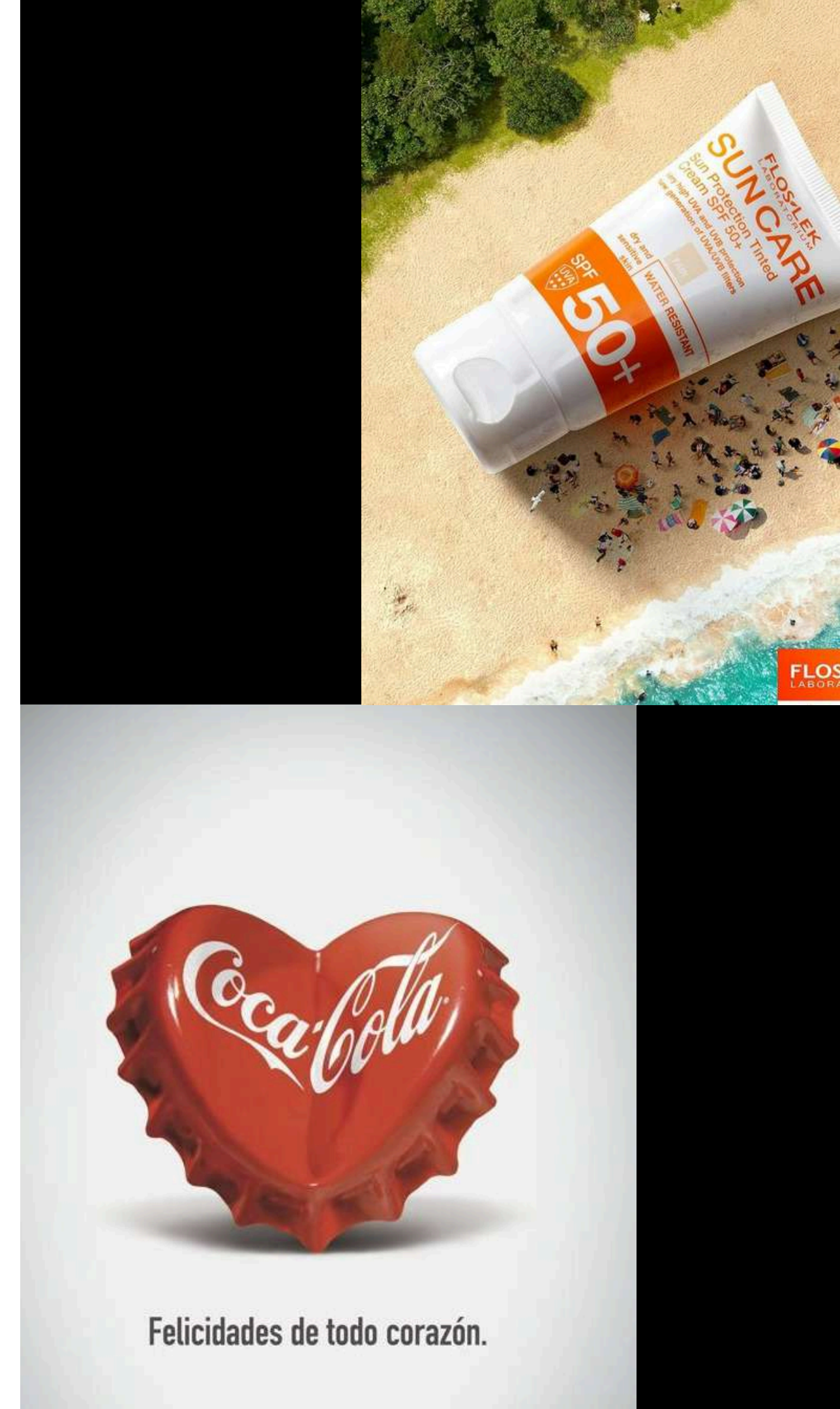
ACCURACY

Accuracy and Clarity sets the a specific standard for the quality of the information provided. This clause ensures that claim, documentation, data or details shared shall be truthful and free of lies.

- Accuracy further means information provided in the right way, without inaccuracies. Accurate writing is the guarantee that facts and details, and even the descriptions of the subject matter are true and correct; credible facts.

Example:

Brands should always accurately present their products or services without adding extra fluffs that may be misleading from the real product users will get.



CLARITY

Ads should feature clear and represented products. Anything beyond what customers will really get should be backed with a legal disclaimer that is readable and visible. Failure to do so implies a legal fraud.

Example:

One example is the infamous Red Bull gives you wings ad that always has a disclaimer.

Disclaimer: The above definition is not from a legal source.

THIS IS AN AD FOR MEN.

Hire more women in leadership roles. We're all worth it.



L'ORÉAL
PARIS

ADVERTISING THAT VIOLATES THE CLAUSE

Advertising is the backbone to promote products for brands. Most of the time, they may be exaggerated and provide false or misleading claims that may alter consumers use if not backed by a disclaimer.

Ads can be using a funny, comical or inspirational tone to catch users attention but they have to be used with care and compliance with local regulations. One example is the French beauty house L'Oreal who went a bit too far with an ad about aging.



L'ORÉAL'S "YOUTH CODE" (2011)



The brand has been known for their “anti aging” products. In 2011, they released the “youth code” which they claimed could reverse the effects of aging and erase wrinkles in few weeks.

How it violates the code:

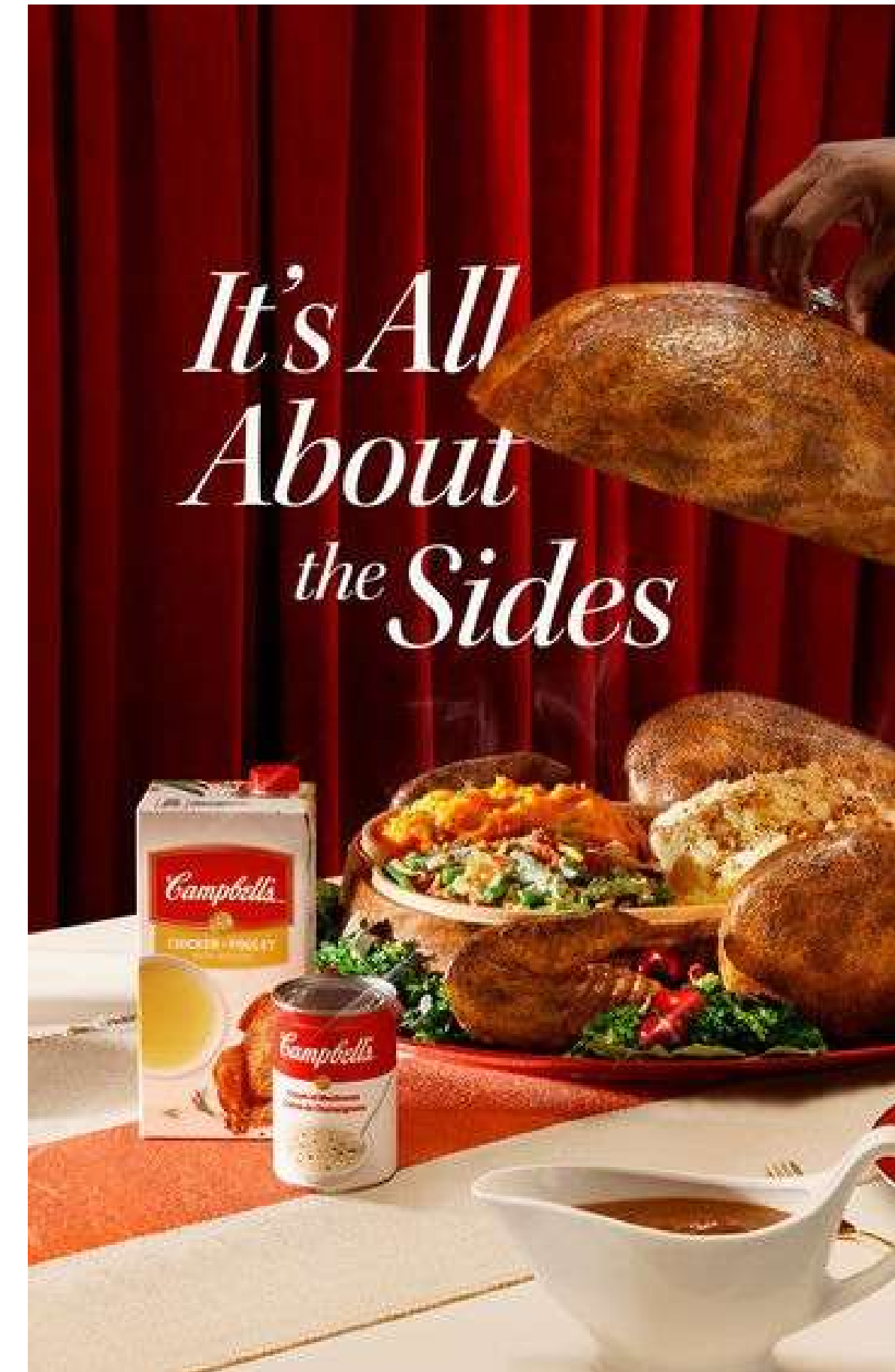
The claims were highly misleading because they weren’t supported by scientific evidence and were definitely dramatic. Instead, research showed that the product could hydrate the skin and improve appearance temporarily; suggesting all anti-aging and edgy claims were untrue. Customer feedback also contradicted the claims.

In 2014, the company was hit with consumer protection complaints in the USA by the Federal Trade Commission for “alleged deceptive advertising for anti-aging cosmetics.”

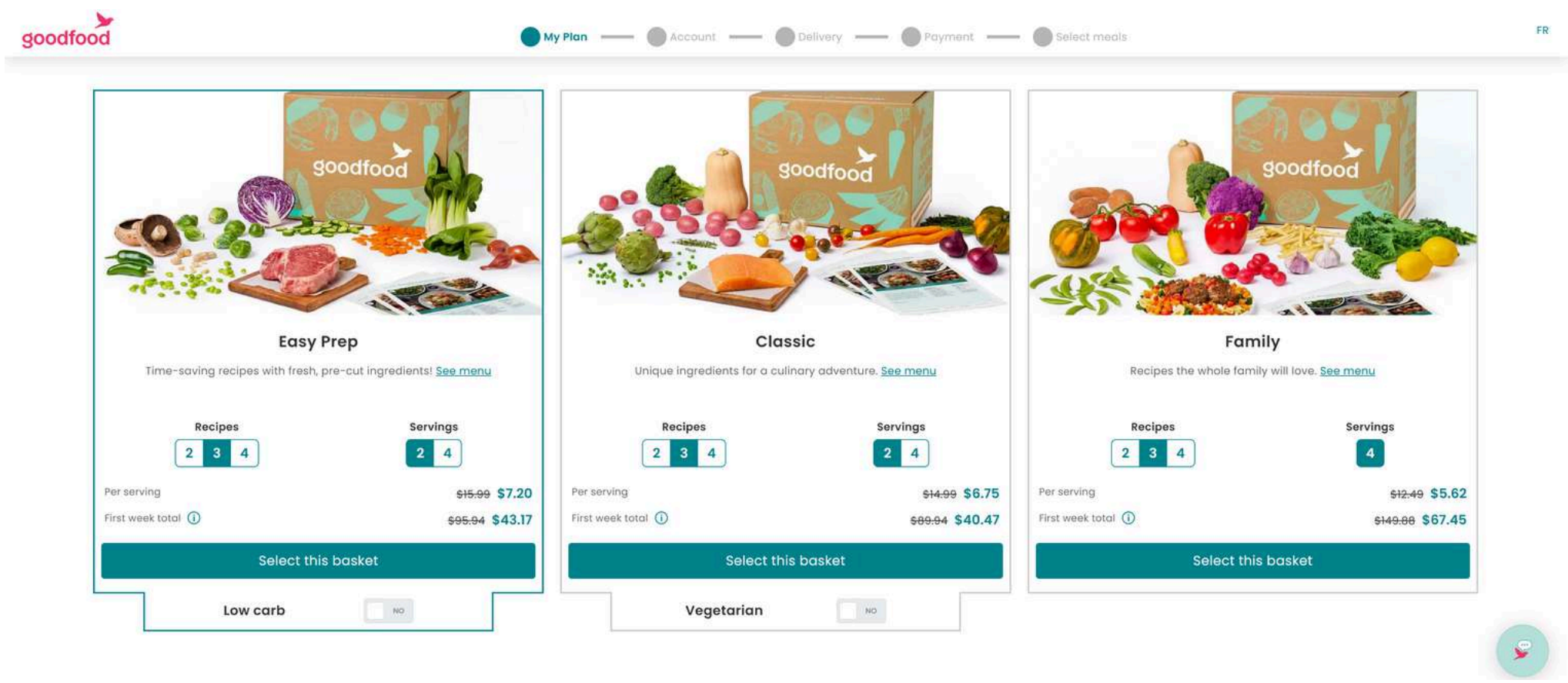
According to the FTC complaint, L’Oreal made false and unsubstantiated claims that its Youth Code products provided anti-aging benefits by targeting specific users. (Federal Trade Commission, 2014).

WHY WE THINK THIS CLAUSE EXISTS?

- Ensuring honest communication: This clause helps ensure that advertisements. This clause helps ensure that advertisements preventing misleading or false claims.
- Building consumer trust: The aims to promote trust between advertisers and consumers by requiring accuracy and clarity, which is essential for preserving the integrity of the advertising the integrity of the advertising.
- Promoting informed decisions: Transparent and accurate advertising enables consumers to make well-informed buying decisions based trustworthy information.
- Preventing confusion: The clause aids in lowering the risk of consumers misinterpreting misinterpreting advertising messages, which may result in disappointment or complaints
- Legal compliance: Precise and transparent advertising helps advertisers comply with legal standards and avoid potential legal issues arising from false or misleading claims.
- Upholding industry standards: This clause establishes a standard for advertising quality, encouraging advertisers to maintain high standards in their messaging.
- Promoting fair competition: By requiring all advertisers comply with accuracy and clarity standards, this clause contributes to equal competitive environment in the marketplace



CONSUMER COMPLAINTS SUMMARIES



The selected complaint is from 2020, adstandards.ca for a Montreal based meal kit delivery providers called Goodfood, that provides customers with fresh ingredients and recipes to help them cook fresh meals at the convenience of their homes.



Who was the marketer?

Goodfood - A leading canadian online grocery, home meal and meal kit company, based in Montreal, Quebec. Founded in 2014.

What was the advertisement about ?

On the Facebook page of Goodfood, they posted an advertisement to encourage people to order more to get more, one of their advertisements stated "5 free meals in your 1st basket!" and had images of five separate plates with varied dishes of different cuisines on each.

What was the complaint against them?

There was a complain against the above stated advertisement as the complainer argued that Goodfood was not offering full meals instead they were just offering some portions of the meals and that they were misleading customers to order more this way.



- Goodfood and Ad Standards were in touch regarding this complain and the advertiser failed to submit any communication related to the pros of the advertisement.
- The council discussed this issue and came to the conclusion that it was indeed confusing and unclear that the advertiser was referring to “five free meals” as in five full meals or five portions of meals. However, there was a minority of the people in the council which even argued that the offer was clear due to additional content and images.
- Overall, this advertisement was deemed misleading and unclear. Hence, Goodfood had to pull this advertisement down.



Our take on this advertisement:

We feel this advertisement was subject to interpretation and required more clarity with reference to offers, specially when any additional items are being offered on the first order. As, new customers are difficult to get and easy to lose when they feel deceived. If a new customer feels cheated then it would be a customer lost forever.

Hence, overall this advertisement was inaccurate, unclear and bad for overall reputation of Goodfood.

THANK YOU